

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 10, 2024, and based on the following

FACTS

FIRST: On April 10, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202304197, by virtue of which a fine of €300.00 (three hundred euros) was imposed on the appellant for a violation of Article 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

This resolution, which was notified to the appellant on April 24, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00154/2023, the following was recorded:

The reported party is responsible for the video surveillance system installed in the establishment open to the public where it conducts its economic activity. This video surveillance system was not properly signposted with the required signs indicating the monitored area, and it also lacked informational materials regarding data protection available to customers and users of the establishment.

Once the complaint was known, the reported party proceeded to place informational signs about the installation of video surveillance cameras and to have forms for the exercise of rights available to users in the establishment.

THIRD: The appellant submitted a recourse for reconsideration on April 30, 2024, to this Spanish Agency for Data Protection, basing it fundamentally on their disagreement with the imposition of a sanction for facts they claim were not committed and which they demonstrated by providing photographs of the establishment published on Google Maps, showing the signs that currently inform about the rights of the affected individuals and asserting that they were already in the same location two years ago.

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LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that the resolution subject to the recourse imposed a fine of €300, already notified in the proposal for resolution of the procedure, and that it also imposed the obligation to adopt measures consisting of proving that they have placed the informational device in the monitored areas, locating this device in a sufficiently visible place, both in open and closed spaces, in addition to proving that they maintain the information referred to in Article 13 of the GDPR available to the affected individuals.

In the Resolution of the procedure, the €300 fine for the committed violation is notified, and considering

that the implementation of the imposed measures has been accredited, no reference is made to any additional measures.

In the document submitting the recourse for reconsideration, the appellant states that the informational signs regarding rights in data protection were in the same location two years ago, providing unintelligible screenshots from Google Maps that only allow glimpsing that there are some signs.

However, in the complaint report presented by the GUARDIA CIVIL - TARREGA POST dated March 7, 2023, it is noted that there was no sign or informational distinguishing feature in a visible place in the monitored area. Furthermore, at the time of the reported facts in this report and as stated by the complainant, no statements were made in the form of allegations by the appellant.

Article 77.5 of the LPACAP establishes that "the documents formalized by officials recognized as authorities and which, observing the corresponding legal requirements, record the facts verified by them shall serve as proof of these facts unless proven otherwise," and the Google Maps screenshots presented are not clear enough to undermine the veracity of the complaint report from the GC.

III

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Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to operational reasons of the administrative body, which are not attributable to the appellant, as of this date, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time that has passed, the Administration is obliged to issue an express resolution and notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

In cases of dismissal due to administrative silence, the express resolution after the expiration of the deadline will be adopted by the Administration without any binding connection to the meaning of the silence, as provided in Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on April 10, 2024, in file EXP202304197.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th

of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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